

24SMCV02786 24SMCV02786

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-16

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C09%2F16%2F2026

Source SHA-256: d64d2c7e2772b68f0cce6171058277d3d0e6c8db94bc3b18186198b44ee555d6

Case Number: 24SMCV02786 Hearing Date: September 16, 2026 Dept: I

This is a last-second application filed to move the trial or the MSJ hearing on a motion that was also filed at the last second. This is part of a disturbing trend of filing MSJ motions at the last possible second and then moving to have them heard or the trial continued. It is a bad practice. Last week, a party attempted this but there was a problem with the service so the motion was untimely. The court therefore denied that application.

But that said, the law is clear. If the motion is timely filed—meaning that it is filed at least 81 days before the hearing plus additional time depending on service, and the earliest possible hearing date is at least 30 days before the trial—then the motion must be heard.

This motion was filed on September 3, 2026. 81 days later is November 23, 2026. Adding two court days for electronic service,

the earliest hearing date is November 25, 2026—the day before the Thanksgiving holiday. The trial is December 28,

2026. Had the motion been filed and

served even one day later, it would be untimely (as the earliest possible hearing date would be November 30). But

the fact is that the motion is timely.

The court will therefore GRANT the motion to the extent that the court will exercise its discretion to hear the motion, presently set for December 3, just four court days after the earliest possible hearing date. The trial and FSC remain on calendar.

The court will not hear argument.